

This Court has decided three cases dealing with the scope of the immunity protecting various types of governmental officials from liability for damages under § 1983. In *Tenney v. Brandhove*, 341 U. S. 367 (1951), the question was found to be one essentially of statutory construction.⁸ Noting that the language of § 1983 is silent with

1970), extended the immunity to action taken in good faith and in accordance with "long standing legal principle." See also *Skehan v. Board of Trustees of Bloomsburg State College*, 501 F. 2d 31, 43 (CA3 1974); *Handverger v. Harvill*, 479 F. 2d 513, 516 (CA9), cert. denied, 414 U. S. 1072 (1973); *Wood v. Goodman*, 381 F. Supp. 413, 419 (Mass. 1974); *Thonen v. Jenkins*, 374 F. Supp. 134, 140 (EDNC 1974); *Taliaferro v. State Council of Higher Education*, 372 F. Supp. 1378, 1382-1383 (ED Va. 1974); *Vanderzanden v. Lowell School District No. 71*, 369 F. Supp. 67, 72 (Ore. 1973); *Jones v. Jefferson County Board of Education*, 359 F. Supp. 1081, 1083-1084 (ED Tenn. 1972); *Adamian v. University of Nevada*, 359 F. Supp. 825, 834 (Nev. 1973); *Boyd v. Smith*, 353 F. Supp. 844, 845-846 (ND Ind. 1973); *Hayes v. Cape Henlopen School District*, 341 F. Supp. 823, 829 (Del. 1972); *Schreiber v. Joint School District No. 1, Gibraltar, Wis.*, 335 F. Supp. 745, 748 (ED Wis. 1972); *Endicott v. Van Petten*, 330 F. Supp. 878, 885-886 (Kan. 1971); *Holliman v. Martin*, 330 F. Supp. 1, 13 (WD Va. 1971); *McDonough v. Kelly*, 329 F. Supp. 144, 150-151 (NH 1971); *Cordova v. Chonko*, 315 F. Supp. 953, 964 (ND Ohio 1970); *Gouge v. Joint School District No. 1*, 310 F. Supp. 984, 990, 992-993 (WD Wis. 1970).

⁸ "Did Congress by the general language of its 1871 statute mean to overturn the tradition of legislative freedom achieved in England by Civil War and carefully preserved in the formation of State and National Governments here? Did it mean to subject legislators to civil liability for acts done within the sphere of legislative activity? Let us assume, merely for the moment, that Congress has constitutional power to limit the freedom of State legislators acting within their traditional sphere. That would be a big assumption. But we would have to make an even rasher assumption to find that Congress thought it had exercised the power. These are difficulties we cannot hurdle. The limits of §§ 1 and 2 of the 1871 statute . . . were not spelled out in debate. We cannot believe that Congress—itself a